

24STCV02569 24STCV02569

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Case Number: 24STCV02569 Hearing Date: September 3, 2026 Dept: 516

Judge James I. Montgomery

Department 516

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Case

No.: Segura v. J.T. Wimsatt Contracting Co.,
Inc.

Matter: Motion for Summary Judgment or, in the Alternative,
Summary Adjudication

Moving

Party: Defendant J.T. Wimsatt
Contracting Co., Inc.

Responding Party: None Lee Segura

Tentative

Ruling: Defendant J.T. Wimsatt
Contracting Co., Inc.'s motion for summary judgment is denied.

Defendant J.T.

Wimsatt Contracting Co., Inc.'s motion for summary adjudication is denied.

On June 10, 2024, Plaintiff Lee Segura ("Plaintiff") filed this action against Defendant J.T. Wimsatt Contracting Co., Inc. ("Defendant") and Does 1 through 25. The First Amended Complaint ("FAC") alleges two causes of action for: (1) violation of Labor Code section 1102.5; and (2) wrongful termination in violation of public policy.

Defendant moves for summary judgment, or alternatively summary adjudication. Plaintiff opposes.

Legal Standard

"The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co., (2001) 25 Cal.4th 826, 850.) A triable issue of material fact exists if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (Ibid.)

;

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." (Avivi v. Centro Medico Urgente Medical Center, (2008) 159 Cal. App. 4th 463, 467; Code Civ. Proc. § 437c, subd. (c).)

Request for Judicial Notice

Defendant requests the Court to take judicial notice of: (1) Plaintiff's Complaint; (2) Plaintiff's FAC; and (3) a portion of the Small Business Administration's website.

The Court grants judicial notice of Plaintiff's Complaint and FAC, pursuant to Evidence Code section 452, subdivision (d).

The Court

grants Plaintiff's request to take judicial notice of the portion of the Small Business Administration's website pursuant to Evidence Code section 452, subdivision (b).

Evidentiary Objections

Defendant

makes several evidentiary objections to Plaintiff's Declaration. The Court rules in the following manner:

Sustained:

6 (Lacks Foundation/Lacks Authentication), 7 (Hearsay), 23 (Speculation), 26

(Hearsay), 27 (Hearsay), 28, (Hearsay)

Overruled: 1,

5, 8, 10, 12, 15, 15, 22, 25

Defendant

made several objections that were not in proper format; all the objections are overruled. (Objections, 2:6-15.)

The Court

declines to rule on the remainder of Defendant's evidentiary objections per Code of Civil Procedure section 437c, subdivision (q).

Analysis

Defendant

moves for summary judgment or summary adjudication as to Plaintiff's cause of action for: (1) retaliation in violation of Labor Code section 1102.5 and (2) wrongful termination in violation of public policy. Defendant also moves for summary adjudication as to the issue of punitive damages because Plaintiff cannot establish that an "officer, director, or managing agent acted with 'oppression, fraud, or malice.'" (Not., 2:20-22.)

First

Cause of Action—Retaliation in Violation of Labor Code section 1102.5

Labor Code

section 1102.5, subdivisions (b) and (c) state that:

(b) An employer, or

any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance, or for providing information to, or testifying before, any public body conducting an investigation, hearing, or inquiry, if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties.

(c) An

employer, or any person acting on behalf of the employer, shall not retaliate against an employee for refusing to participate in an activity that would result in a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation.

(Labor Code, § 1102.5, subd. (b)-(c) (emphasis added).)

“But the

protections of section 1102.5(b) apply only where the disclosing employee ‘has reasonable cause to believe that the information discloses a [legal] violation.’

(Ibid.) This clause imposes a requirement of objective reasonableness and excludes from whistleblower protection disclosures that involve only disagreements over discretionary decisions, policy choices, interpersonal dynamics, or other nonactionable issues. Moreover, an employer accused of retaliation in violation of section 1102.5(b) can rebut the charge by ‘demonstrat[ing] by clear and convincing evidence that the alleged [retaliatory] action would have occurred for legitimate, independent reasons even if the employee had not engaged in activities protected by Section 1102.5.’” (People ex rel. Garcia-Brower v. Kolla's, Inc. (2023) 14 Cal.5th 719, 734.)

Defendant

argues that Plaintiff did not have a reasonable cause to believe that Defendant

had violated the law and Defendant did not blow the whistle.

“The

separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion.” (Cal. Rules of Court, rule 1.1350(d)(2).) The Separate Statement of Undisputed Material Facts in support of a motion must separately identify:

“[e]ach cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion.” (Cal. Rules of Court, rule 1.1350(d)(1).)

As an

initial matter, Defendant’s separate statement is defective. Defendant has no headings to separate which Undisputed Material Facts (“UMF”) support each cause of action. Second, several of the proposed UMF are not material facts; instead, Defendant is attempting to dispute the evidence it cites to, and the allegations in the FAC. (UMF, 3, 8, 18, 20, 22.)

“The point

of the separate statement is not to craft a narrative, but to be a concise list of the material facts and the evidence that supports them. “The separate statement serves two important functions in a summary judgment proceeding: It notifies the parties which material facts are at issue, and it provides a convenient and expeditious vehicle permitting the trial court to hone in on the truly disputed facts.” (Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865, 875.) Here, Defendant has failed to file a proper separate statement.

“[R]easonableness

becomes a question of law appropriate for determination on motion for summary judgment when only one conclusion about the conduct’s reasonableness is possible.” (West v. State Farm Fire & Casualty Co. (9th Cir. 1988) 868 F.2d 348, 351.) “A claim for violation of Labor Code section 1102.5 requires “(1) the plaintiff establish a prima facie case of retaliation, (2) the defendant provide a legitimate, nonretaliatory explanation for its acts, and (3) the plaintiff show this explanation is merely a pretext for the retaliation. [Citations.]” [Citation.] To establish the first element, the plaintiff must show (1) the plaintiff engaged in protected activity, (2) the defendant subjected the plaintiff to an adverse employment action, and (3)

there is a causal link between the two.” (Ross v. County of Riverside (2019) 36 Cal.App.5th 580, 591–592.)

“To have a reasonably based suspicion of illegal activity, the employee must be able to point to some legal foundation for his suspicion—some statute, rule or regulation which may have been violated by the conduct he disclosed. [Citation.]” (Ross v. County of Riverside (2019) 36 Cal.App.5th 580, 592.)

Defendant argues that Plaintiff only relies on the Code of Federal Regulations Title 49, Part 26 to support the basis as to why he believed Defendant was engaging in fraud or false representations. Defendant spends substantial effort to differentiate between the “WOSB” and the “EDWOSB.” Defendant also argues that Plaintiff improperly relied on Los Angeles County Metropolitan Transportation Authority’s (“METRO”) denial of the Disadvantaged Business Enterprise” certification. (UMF, 19.)

However, the initial dispute is whether Plaintiff’s belief was reasonable. The Court finds that the evidence brought forth by Defendant establishes that a triable issue of material fact exists as to whether such belief would be considered reasonable, and the Court cannot resolve on motion for summary judgment. It is apparent to the Court by Defendant’s evidence and argument that Plaintiff did not understand the difference between the different types of certifications available that Defendant had applied for. But as to the determination of whether that is reasonable, the Court cannot make such a finding based on the evidence before the Court. (UMF 18, 20, 22, 28). Additionally, Defendant cites to Plaintiff’s “Depo., Vol. II, pp. 373:21-374:11,” but the pages cited to are not included in Defendant’s Compendium of Evidence.

Another triable issue of material fact is that Defendant argues that Plaintiff did not “blow the whistle,”; however, Defendant ignores that the Labor Code does not require the employee to blow the whistle, and it is enough if “the employer believes that the employee disclosed or may disclose information.” (Labor Code, § 1102.5, subd. (b).) Here, Defendant does not address this part of the Labor Code. The burden is on Defendant to establish that Plaintiff cannot present evidence to prevail on its claim. Most importantly, Defendant does not address the element of causation to argue that Plaintiff’s cause of action is without merit. Defendant’s failure to argue that there is no

causation is futile for purposes of its motion.

"In a civil

action or administrative proceeding brought pursuant to Section 1102.5, once it has been demonstrated by a preponderance of the evidence that an activity proscribed by Section 1102.5 was a contributing factor in the alleged prohibited action against the employee, the employer shall have the burden of proof to demonstrate by clear and convincing evidence that the alleged action would have occurred for legitimate, independent reasons even if the employee had not engaged in activities protected by Section 1102.5." (Lab. Code, § 1102.6.)

While the

Court does not need to address this part of the analysis, even if the Court reached this matter, Defendants have not met their burden to establish that Plaintiff's employment would have been terminated for an independent reason. Defendants have also presented conflicting evidence before the Court and request that the Court weigh the evidence and determine who is credible and which evidence is credible. Defendant's request is inappropriate for purposes of a motion for summary judgment. Defendant repeatedly asserts that it had decided to replace Plaintiff as early as 2020, but the Plaintiff received a favorable annual performance evaluation in 2022. (UMF 15-17; FAC, Ex. A.) Then, in John Ewing Wimsatt's Vol. II deposition, he testified that he would give Plaintiff insincere evaluations to "avoid conflict." (Defendant's Ex. C, 110:4-111:7.) Additionally, there was a lapse of approximately three years from when Defendant allegedly decided to replace Plaintiff; thus, Defendant did not establish by clear and convincing evidence that Plaintiff would have been terminated regardless of the employee's conduct.

Thus, for

the reasons addressed above based on the evidence before the Court, the Court finds that Defendant has not met its burden to establish that no triable issue of material fact exists regarding Plaintiff's first cause of action. Because Defendant has not met its burden, the burden does not shift to Plaintiff.

Therefore,

the Court denies Defendant's motion for summary judgment.

The Court

also denies Defendant's motion for summary adjudication as to the first cause of action.

Second Cause of Action- Wrongful Termination

"The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff's employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm." (Yau v. Santa Margarita Ford, Inc. (2014) 229 Cal.App.4th 144, 154.)

Defendant argues that because Plaintiff cannot establish his first cause of action, then his cause of action for wrongful termination must also fail. (Mot., 25:14-19.) However, as this ruling addresses, the Court has determined that several triable issues of material fact exist; Defendant's argument fails. Moreover, it is unclear what undisputed material facts support Defendant's argument.

Thus, Defendant has not met its burden to establish that no triable issue of material fact exists. Because Defendant has not met its burden, the burden does not shift to Plaintiff.

Therefore, the Court denies Defendant's motion for summary adjudication as to the second cause of action.

Punitive Damages

Punitive damages are not imposed as a matter of right. (Henderson v. Security Nat. Bank (1977) 72 Cal.App.3d 764, 770.) "With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code, § 3294, subd. (b).)

As an

initial matter, Defendant has the burden of establishing that Plaintiff is not entitled to punitive damages. Defendant only argues that even if it is ultimately determined that Plaintiff was wrongfully terminated, he is not entitled to punitive damages because there is no evidence of malice, fraud, or oppression. However, Defendant does not cite to any undisputed material facts or evidence to support its claim.

Thus,

Defendant has not met its burden to establish that no triable issue of material fact exists. Because Defendant has not met its burden, the burden does not shift to Plaintiff.

Therefore,

the Court denies Defendant's motion for summary adjudication as to the punitive damages.

Conclusion

Defendant's

motion for summary judgment is denied.

Defendant's

motion for summary adjudication is denied in its entirety.